

SOFTWARE LICENSE AGREEMENT BETWEEN HORIZON INNOVATIONS LTD. AND DELTA ENTERPRISES CORP.

Between: **Horizon Innovations Ltd.** (Licensor) and **Delta Enterprises Corp.** (Licensee)

Effective Date: 2024-06-22

Termination Date: 2027-06-22

Governing Law: the laws of England and Wales

1. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this software license Agreement dated 2024-06-22 between Horizon Innovations Ltd. and Delta Enterprises Corp.. "Services" means the services described in Clause 1. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

2. Indemnification

Horizon Innovations Ltd. shall indemnify, defend, and hold harmless Delta Enterprises Corp. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Horizon Innovations Ltd.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

3. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of England and Wales. Subject to Clause 1, the courts of Noida shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

4. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

5. Payment Terms

Delta Enterprises Corp. shall pay HIL a fee of Rs. 29,00,000 (Rupees Twenty-nine lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Delta Enterprises Corp.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

6. Insurance

Horizon Innovations Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 29,00,000 (Rupees Twenty-nine lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 29,00,000 (Rupees Twenty-nine lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Horizon Innovations Ltd. shall provide evidence of such insurance upon request.

7. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

8. Termination

Either Party may terminate this Agreement by giving 15 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Delta Enterprises Corp. shall pay for all Services rendered up to the date of termination.

9. Term

This Agreement shall commence on the Effective Date, 2024-06-22, and shall continue until 2027-06-22, unless earlier terminated in accordance with Clause 3. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

10. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

11. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

12. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 29,00,000 (Rupees Twenty-nine lakh Only). This limitation does not apply to obligations arising from Clause 11 or indemnification obligations.

IN WITNESS WHEREOF

Licensor

Horizon Innovations Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Licensee

Delta Enterprises Corp.

Signature: _____

Name: _____

Title: _____

Date: _____